



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 02, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 6769
(FIFTEENTH REVISION)

EXPIRATION DATE: 2027-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: The Chemours Company FC LLC
Wilmington, DE
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.1 and 2.2 gases described in paragraph 6 below in DOT Specification tank car tanks and cargo tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.314 and 173.315 in that alternative packaging is authorized, as specified herein.
5. BASIS: This special permit is based on the application of The Chemours Company FC LLC dated September 14, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022094806

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquefied gas, flammable, n.o.s.	2.1	UN3161	N/A
Trifluoromethane	2.2	UN1984	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) An insulated DOT Specification MC-331 cargo tank motor vehicle having a water capacity of 4,400 gallons and constructed in accordance with Lubbock Manufacturing Company's Drawings STR 484-A through STR 484-A8, as revised, on file with the Office of Hazardous Materials Safety.

(2) DOT Specification 105A600W, 105J600I and 105J600W tank car tanks.

b. Each cargo tank must be filled by weight to allow at least 2% outage below the inlet of the pressure relief valve under conditions of incipient opening of this valve with the tank in a level attitude.

c. Each cargo tank used for chlorodifluoromethane (R22)/dimethyl ether blends must have liquid and vapor discharge openings fitted with remotely controlled internal self-closing stop valves in accordance with § 178.337-1(a)(2).

d. OPERATIONAL CONTROLS:

(1) Before transportation in an empty condition, each cargo tank and tank car tank must be emptied of liquid content. In addition, the vapor pressure must be so reduced as to avoid the possibility of venting en route.

(2) Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 6769". Each tank car tank must be stenciled "DOT-SP 6769" in letters at least four inches high on a contrasting background above the DOT specification stenciling.

(3) Shipment may not be tendered to the rail carrier at a temperature below minus 50 °F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.

c. Motor carriers operating under the terms of this special permit must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae